IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal under Section 331(1) of the Code of Criminal Procedure Act and in terms of Article 138 of the Constitution of the Democratic Socialist Republic of Sri Lanka against the Judgment of the High Court of Kalutara dated 28th October 2024.

The Democratic Socialist Republic of Sri Lanka.

Complainant

Vs

1. Sooriyaarachchige Sujeewa Nirmana
2. Jagath Premalal Pinnagoda Vithana

Accused

Court of Appeal Case No:
CA/HCC/0017-018/2025
High Court of Kalutara Case No:
HC 152/21

AND NOW BETWEEN

1. Sooriyaarachchige Sujeewa Nirmana
2. Jagath Premalal Pinnagoda Vithana

1st and 2nd Accused – Appellant

Vs

The Democratic Socialist Republic of Sri Lanka.

Complainant - Respondent

Hon. Attorney General,
Attorney General's Department,
Colombo 12

Respondent

Before : **P. Kumararatnam, J.**

Pradeep Hettiarachchi, J.

Counsel : Razik Zarook, P.C. with Rohan Deashapriya and Chanakya Liyanage for the Accused -Appellant.

Wishwa Wijesuriya, S.C. for the State.

Argued on : 19.12.2025

Decided on : 27.02.2026

Pradeep Hettiarachchi, J

Judgment

1. The sole question that arises for determination in this appeal is whether the sentence imposed by the High Court on the two accused-appellants warrants interference, and whether it would be appropriate for this Court to act under Section 306 of the Code of Criminal Procedure Act.

2. The appellants were initially charged before the Magistrate's Court of Mathugama with offences punishable under Sections 140, 146, 433, and 419 of the Penal Code, namely being members of an unlawful assembly, committing criminal trespass, and causing mischief. Proceedings were instituted under Section 136(1)(a) of the Code of Criminal Procedure Act, No. 15 of 1979. The appellants pleaded not guilty. However, owing to the absence of the complainant on the date fixed for trial, the learned Magistrate acquitted both appellants of the said charges.

3. Before the conclusion of the proceedings in the Magistrate's Court, the appellants were indicted before the High Court of Kalutara on five counts, namely being members of an unlawful assembly, two counts of criminal trespass, and two counts of causing mischief. Upon the indictment being read over and explained to them, the appellants

pleaded guilty to the charges, whereupon the learned High Court Judge proceeded to sentence them as follows:

a) For the first count, a fine of Rs. 15,000.00 with a default sentence of six months' imprisonment;
b) For counts 2 to 5, six months' imprisonment on each count, suspended for a period of ten years, together with a fine of Rs. 15,000.00 on each count, and in default, three months' imprisonment.
c) The appellants were further ordered to pay compensation in a sum of Rs. 1,000,000.00 to the aggrieved party, with a default sentence of six months' imprisonment.

4. In this appeal, the appellants invited this Court to invoke the provisions of Section 306 of the Code of Criminal Procedure Act and to grant them a conditional discharge. When the matter was taken up for argument, the learned State Counsel appearing for the respondent informed Court that he had no objection to the relief sought by the appellants.

5. Considering the factual matrix of the case, it appears that a dispute arising out of palm tree cultivation gave rise to the incident in which the appellants became involved. The 2nd appellant was a Provincial Councillor of the Western Provincial Council during the relevant period. It was submitted that, despite there being a ban on palm tree cultivation imposed by the Kalutara District Coordinating Committee in line with a Cabinet decision, the aggrieved party, namely Namunukula Plantation Ltd., had cleared a land area in extent of approximately ten acres in the Yatadola Estate.

6. The 1st appellant had made a complaint to the Police in view of a protest organised by the residents of the area. It was further submitted that the 2nd appellant, in his capacity as the Chairman of the Provincial Development Committee, also proceeded to the location with the Police to control the protestors. Subsequently, the aggrieved party lodged a complaint with the Police and also filed a plaint under Section 136(1)(a) of the Code of Criminal Procedure Act in the Magistrate's Court of Mathugama.

7. Section 306(2) of the Code of Criminal Procedure Act empowers the High Court to grant a conditional discharge to an accused person after having regard to the circumstances of the particular case.

Section 306 (2) reads:

(2) Where any person has been convicted on indictment of any offence punishable with imprisonment, and the court is of opinion that, having regard to the character, antecedents, age, health, or mental condition of the person charged, or to the trivial nature of the offence, or to the extenuating circumstances under which the offence was committed, it is inexpedient to inflict any punishment, or any other than a nominal punishment, or that it is expedient to discharge the offender conditionally as hereinafter provided, the court may, in lieu of imposing a sentence of imprisonment, make an order discharging the offender conditionally on his entering into a recognizance, with or without sureties, to be of good behaviour, and to appear for sentence when called on at any time during such period, not exceeding three years as may be specified in the order.

(3) The court may, in addition to any order it may make under subsection (1) or subsection (2), order the offender to pay –

(i) compensation under section 17 (4); and

(ii) State costs in an amount not exceeding one thousand five hundred rupees as the court thinks fit.

8. In the present case, the offences for which the appellants were indicted are compoundable in nature. It further appears that the appellants' involvement in the alleged offences was not motivated by any personal animosity towards the aggrieved party, but arose in the course of a protest campaign organised by residents of the area. This Court is also mindful that the appellants pleaded guilty at the earliest opportunity, thereby saving valuable judicial time, and that they have readily agreed to pay the compensation ordered by Court.

9. In determining whether relief under Section 306 should be granted, the Court must have regard to the circumstances under which the appellants became involved in the incident, as well as their age and character, particularly the fact that they have no previous convictions and that no other proceedings are pending against them before any court.

10. In the High Court, the learned State Counsel had also informed Court that the 1st and 2nd appellants had proceeded to the location under colour of their office, in the context of a protest campaign organised by residents of the area. Although these mitigating circumstances were brought to the notice of the learned trial Judge before sentence was passed, the learned trial Judge nevertheless proceeded to impose a suspended sentence together with a fine on both appellants.

11. Upon a consideration of the attendant circumstances of this case, in particular the fact that no bodily injury was caused to any member of the aggrieved party, together with the fact that the appellants have readily agreed to pay the compensation already ordered by the High Court, I am of the view that this is a fit and proper case to be dealt with under Section 306(2) of the Code of Criminal Procedure Act. I also take into account that no objection was raised by the State when the matter was taken up for argument before this Court.

12. In the circumstances, I hereby set aside the conviction and the sentence imposed on the appellants by the learned High Court Judge dated 28.10.2024.

13. I substitute the said sentence with the payment of State costs in a sum of Rs. 1,500.00 payable by each of the appellants in respect of each count.

14. Furthermore, it is hereby ordered that each of the appellants shall enter into a bond in a sum of Rs. 1,000,000.00, with two sureties, for a period of two years to ensure good behaviour.

15. The order for compensation made by the learned High Court Judge shall remain undisturbed. Accordingly, the appeal is partly allowed.

Judge of the Court of Appeal

P. Kumararatnam,J

I agree,

Judge of the Court of Appeal